

Gajveer Singh v. Power Corporation Limited

High Court of Judicature at Allahabad · Division Bench · 2 February 2023 · WRIT - C No. 37218 of 2022 · **Writ disposed; EE to redress grievance in accordance with law.**

HEADNOTE

Writ seeking a time-bound direction to install a 13 HP private tubewell connection after deposit of the estimate is disposed of, without any opinion on the merits, directing the Executive Engineer to look into the grievance and redress it in accordance with law within three weeks. The Court treated the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 as self-contained.

FACTUAL SUMMARY

The petitioner, resident of Village Valipur Athseli, District Farrukhabad, applied for a 13 HP private tubewell connection and deposited the estimated amount of Rs.1,43,559 on 16 November 2021. The connection was not released. His representation dated 13 December 2021 to the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Kayamganj, remained unattended. He sought a writ directing installation of the connection within a stipulated period. The electricity department submitted that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained and he could pursue the statutory remedy.

HOLDING-UNITS

INTERPLAY · UP-2005

delayed new connection; consider grievance in accordance with law

HOLDING

Without expressing any opinion on the merits, and with the consent of the parties, the writ petition seeking a direction to install a 13 HP private tubewell connection after deposit of the estimate is disposed of with a direction to the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Kayamganj, District Farrukhabad to look into the petitioner's grievance and redress the same in accordance with law within three weeks of production of a certified copy of the order, the Court treating the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 as self-contained. ¶ 1

PRINCIPLE TAGS

consider-grievance-in-accordance-with-law-no-merits

The Court accepted that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained, declined to decide the delayed-connection claim on merits, and directed the Executive Engineer to look into and redress the petitioner's grievance in accordance with law within three weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO RELEASE OF THE 13 HP PRIVATE TUBEWELL CONNECTION AFTER DEPOSITING THE ESTIMATED AMOUNT

The Court expressly declined to express any opinion on the merits. ¶ 1